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CASE NAME: Foy, v. Empire Properties, LLC, et al.

CASE NO.: 25SMCV04422

MOTION: Motion to Strike the First Amended Complaint

HEARING DATE: 8/28/2026

LEGAL STANDARD

Any party, within the time allowed to respond to a pleading may serve and file a notice of motion to strike the whole or any part thereof. (CCP § 435(b)(1); Cal. Rules of Court, Rule 3.1322(b).) The court may, upon a motion or at any time in its discretion and upon terms it deems proper: (1) strike out any irrelevant, false, or improper matter inserted in any pleading; or (2) strike out all or any part of any pleading not drawn or filed in conformity with the laws of California, a court rule, or an order of the court. (CCP §§ 436(a)-(b); *Stafford v. Shultz* (1954) 42 Cal.2d 767, 782 ["Matter in a pleading which is not essential to the claim is surplusage; probative facts are surplusage and may be stricken out or disregarded"].)

"In order to survive a motion to strike an allegation of punitive damages, the ultimate facts showing an entitlement to such relief must be pled by a plaintiff. [Citations.] In passing on the correctness of a ruling on a motion to strike, judges read allegations of a pleading subject to a motion to strike as a whole, all parts in their context, and assume their truth. [Citations.] In ruling on a motion to strike,

courts do not read allegations in isolation. [Citation.]” (Clason v. Superior Court (1998) 67 Cal.App.4th 1253, 1255.) In order to state a prima facie claim for punitive damages, a complaint must set forth the elements as stated in the general punitive damage statute, Civil Code section 3294. (Coll. Hosp., Inc. v. Superior Court (1994) 8 Cal.4th 704, 721.) These statutory elements include allegations that the defendant has been guilty of oppression, fraud or malice. Civil Code section 3294 defines malice as conduct “intended by the defendant to cause injury to the plaintiff,” or “despicable conduct which is carried on by the defendant with a willful and conscious disregard of the rights or safety of others.” (Id.) Despicable is a powerful term used to describe circumstances that are “base,” “vile,” or “contemptible.” (Coll. Hosp., supra, 9 Cal.4th at 726.) The statute “plainly indicates that absent an intent to injure the plaintiff, “malice” requires more than a “willful and conscious” disregard of the plaintiffs’ interests. The additional component of “despicable conduct” must be found.” (Id.) “The mere allegation an intentional tort was committed is not sufficient to warrant an award of punitive damages. [Citation.] Not only must there be circumstances of oppression, fraud or malice, but facts must be alleged in the pleading to support such a claim. [Citation.]” (Grieves v. Superior Ct. (1984) 157 Cal.App.3d 159, 166, fn. omitted.) The allegations supporting a request for punitive damages must be alleged with specificity; conclusory allegations without sufficient facts are not enough. (Smith v. Superior Court, (1992) 10 Cal. App. 4th 1033, 1041-1042.)

“Liberality in permitting amendment is the rule, if a fair opportunity to correct any defect has not been given.” (Angie M. v. Superior Court (1995) 37 Cal.App.4th 1217, 1227.) It is an abuse of discretion for the court to deny leave to amend where there is any reasonable possibility that plaintiff can state a good cause of action. (Goodman v. Kennedy (1976) 18 Cal.3d 335, 349.) The burden is on plaintiff to show¿in what manner¿plaintiff can amend the complaint, and¿how¿that amendment will change the legal effect of the pleading.¿(Id.)

ANALYSIS

Defendant Empire Properties LLC moves to strike portions of Plaintiff Jeffrey C. Foy’s First Amended Complaint (“FAC”). Specifically, Defendant seeks to strike the claim for punitive damages.

Reviewing the extensive allegations,

the Court cannot locate any specific conduct by Empire that could be considered malicious, oppressive or fraudulent within the meaning of section 3294. The FAC alleges only a few specific instances of Empire's conduct. First, following relocating Plaintiff into Unit 211, "Empire provided no warnings to Plaintiff about the potential harm Plaintiff might experience due to the presence of a mentally ill and abusive resident living in Unit 208, Drogmund, in very close proximity to Plaintiff's Unit 211 home." (FAC ¶ 28.) A mere failure to warn of the possibility of such harm could not be considered conduct intended to harm, or despicable conduct as a matter of law.

Next, Empire's onsite manager, Mr. Harris, was rude in a "trivial" manner. (FAC ¶¶ 31-32.) This allegation likewise establishes no malicious conduct on Empire's part. The FAC also alleges that Plaintiff wrote to Empire on August 13, 2024, concerning Ms. Drogmund's harassment and discussions with West Hollywood Anti-Violence Project and the West Hollywood Sheriff. (FAC ¶ 38.) Plaintiff also complained about Ms. Drogmund's obscene and abusive language, threatening conduct with her dog, and disturbing intrusions into Plaintiff's privacy. (FAC ¶ 39.) Plaintiff also stated that the Sheriff's office had suggested his only recourse against Ms. Drogmund may be to seek a Restraining order against and/or seek to have her evicted, suggested to Empire that they could take immediate practical actions that might alleviate the growing, serious problem, and expressed his concern about psychological problems respecting Ms. Drogmund's harassing behavior. (FAC ¶ 41.) A manager from Belwood responded that she would need to conduct an investigation and speak with Ms. Drogmund. (Id.) The FAC further alleges that Empire had forwarded the August 13 Letter to Ms. Drogmund. (FAC ¶ 47.) Plaintiff alleges that Defendant disclosed this "sensitive and personal" letter to Ms. Drogmund without Plaintiff's consent. (Id.) The Court is not persuaded that simply sharing the letter with Ms. Drogmund could be considered conduct intended to cause harm or despicable conduct as defined by caselaw. Again, the FAC does not specifically allege that Empire's managing agents intended to cause harm to Plaintiff by sharing the August 13 Letter.

Plaintiff further alleges that Empire failed to conduct an investigation, or enforce its own building rules against the individual tenants who were harassing Plaintiff. (FAC ¶¶ 41, 77, 94(d), and 112(a).) Again, such conduct sounds in mere negligence. The FAC does not allege that this failure to act was intended to cause harm. The FAC does not allege that this failure to act could be considered "despicable" conduct.

Critically, any conduct which might be considered intended to harm or despicable was on the part of the individual tenants, such as Ms. Drogmund, Ms. Podolsky, and Mr. Ford. (See, e.g., FAC ¶¶ 33-77.) The FAC principally relies on the conclusory assertions that Empire conspired or somehow directed, incited, permitted, aided, abetted, ratified, etc., the individual tenants' harassment. (FAC ¶¶ 79-80.) The Court would not find that the tenants' tortious conduct to be grounds for imposing liability for punitive damages against Empire absent more specific allegations of the formation of the conspiracy, or Empire's aiding/abetting the tenants' harassment because the FAC does not meet the pleading standard for conspiracy or aiding/abetting liability in the context of punitive damages.

"To allege a conspiracy, a plaintiff must plead: '(1) formation and operation of the conspiracy and (2) damage resulting to plaintiff (3) from a wrongful act done in furtherance of the common design.' [Citation.]" (Daniels v. Select Portfolio Servicing, Inc., (2016) 246 Cal.App.4th 1150, 1173.) "It is not enough that the [conspirators] knew of an intended wrongful act, they must agree—expressly or tacitly—to achieve it." (AREI II Cases, (2013) 216 Cal.App.4th 1004, 1022.) A conspirator's agreement to the conspiracy "may be inferred from the character of the acts done, the relations of the parties, the interest of the alleged conspirators, and other circumstances." (Id. at 1024.) "[A] complaint is sufficient if it apprises the defendant of the 'character and type of facts and circumstances upon which she was relying to establish the conspiracy.' [Citation.]" (Id. at 1022.)

Liability for aiding and abetting

an underlying tort requires allegations that the actor: "(a) knows the other's conduct constitutes a breach of duty and gives substantial assistance or encouragement to the other to so act or (b) gives substantial assistance to the other in accomplishing a tortious result and the person's own conduct, separately considered, constitutes a breach of duty to the third person." (Casey v. U.S. Bank Nat. Assn. (2005) 127 Cal.App.4th 1138, 1144 [internal quotation marks and citations omitted].) Aiding and abetting requires no agreement, but simply substantial assistance. (Das v. Bank of America, N.A. (2010) 186 Cal.App.4th 727, 744.) Pleadings are required to set forth essential facts with reasonable precision and sufficient particularity to acquaint defendant with nature of claim. (Schulz v. Neovi Data Corp. (2007) 152 Cal.App.4th 86, 95.) Punitive damages claims must be supported with

factual specificity. (Smith, supra, 10 Cal. App. 4th at 1041-1042.)

The FAC does not allege in its 444 paragraphs specific facts concerning how Empire ratified, aided, abetted, assisted or otherwise incited the individual tenants' harassment. (E.g., FAC ¶¶ 54, 94, 212-213, 312-313, 325, 367, 394.) The FAC does not allege Empire's formation and operation within the conspiracy, including a wrongful act done in furtherance of said conspiracy. The FAC just repeats the conclusions that Empire "incited, instigated, condoned, permitted, aided, abetted, ratified, supported and participated in" the tortious conduct. For example, Empire allegedly spread "disinformation" to create a hostile environment, but the FAC does not establish what the disinformation was or how spreading it created a hostile environment. (See e.g., FAC ¶ 205.) Without such allegations, the Court cannot conclude that Empire's "disinformation" ratified or substantially assisted the individual tenants' harassment, was intended to harm, or could constitute despicable conduct. The only specific fact alleged to be in aid of the abuse, or ratifying the abuse, is that Empire shared the August 13 Letter with Ms. Drogmund. Again, Plaintiff fails to explain how sharing the letter, even if confidential, ratified or substantially aided the individual tenants' malicious harassment/abuse. (FAC ¶ 47.)

In addition, while not raised by Defendant, Plaintiff fails to allege that the malicious/oppressive conduct was performed by an officer, director or managing agent of Empire. (Civ. Code § 3294(b).) Accordingly, the motion is GRANTED with 20 days leave to amend.